

23TRCV02425 23TRCV02425

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-13

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Case Number: 23TRCV02425 Hearing Date: August 13, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – August 13, 2026

Calendar No.

PROCEEDINGS

Shean

Washington v. American Honda Motor Co., Inc., et al.

23TRCV02425

1.

Shean

Washington's Motion to Enforce Settlement

TENTATIVE RULING

Shean Washington's Motion to Enforce Settlement is granted.

Background

Plaintiff filed the Complaint on July 26, 2023. This

is a “Lemon Law” case brought by Plaintiff concerning a 2017 Honda Odyssey. Plaintiff alleges that the vehicle suffers from widespread defects, including transmission, engine, electrical, and emission system defects. Defendant has been unable to repair their vehicle within a reasonable number of attempts.

Motion to Enforce Settlement

CCP § 664 states:

“(a) If parties to pending litigation

stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b)

For purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1)

The party.

(2)

An attorney who represents the party.

(3)

If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits.

(c)

Paragraphs (2) and (3) of subdivision (b) do not apply in a civil harassment action, an action brought pursuant to the Family Code, an action brought pursuant to the Probate Code, or a matter that is being adjudicated in a

juvenile court or a dependency court.

(d)

In addition to any available civil remedies, an attorney who signs a writing on behalf of a party pursuant to subdivision (b) without the party's express authorization shall, absent good cause, be subject to professional discipline.

(e)(1)

If a plaintiff, cross-complainant, or other party seeking affirmative relief has filed a notice of conditional settlement, the court may, upon its own motion, without stipulation from the parties or their counsel, set an order to show cause as to why the court should not dismiss the entire action without prejudice and retain jurisdiction to enforce the settlement.

(2)

This subdivision does not apply to actions brought pursuant to Chapter 5 of Title 3 of Part 2 of the Code of Civil Procedure (commencing with Section 378) and Part 13 of Division 2 of the Labor Code (commencing with Section 2698).

(f)

If the Court enters judgment or dismisses the case without prejudice pursuant to this section, the following shall apply:

(1)

A party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.

(2)

The court shall exercise its retained jurisdiction if a party files a notice that a written settlement agreement required of all parties was not signed by all parties.

(3)

A party who has paid a first appearance fee shall not be assessed a first appearance fee again for filing a motion, notice or other document pertaining to the settlement after entry of judgment or dismissal without prejudice.

(4)

The clerk of the court shall accept any motion, notice, or other document properly filed by a party after entry of judgment or dismissal without prejudice.

(g)

Nothing in this section shall preclude a party from filing a request for dismissal with prejudice after the court has dismissed the case without prejudice pursuant to this section.

(h)

On or before January 1, 2025, the Judicial Council shall update or develop new forms or Rules of Court as necessary to implement this section.

(i)

This section shall become operative on January 1, 2025.”

Plaintiff

moves for an order to enforce the settlement between Plaintiff and Defendant AHM. “This motion is made on the grounds this Court has authority to enforce the Settlement as the case has not been fully dismissed, and for Defendant’s failure to disburse settlement funds pursuant to the terms of the Settlement and to surrender the subject vehicle as the settlement calls for.” (Notice of Motion, p. 2, lines 7-9). Plaintiff presented evidence that she signed the CCP § 998 offer made by Defendant and that Defendant has not complied with the terms of the CCP § 998 settlement offer terms. (Decl., Ryan Ardi, ¶¶ 3-9).

Defendant

filed no written opposition to this motion. Therefore, the Court determines that Plaintiff has met its burden to establish that Defendant has not complied with the terms of the settlement agreement.

Therefore,

Plaintiff’s Motion to Enforce Settlement Agreement is granted.

Plaintiff

is ordered to give notice of this ruling.